

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.2 PLANNED DEVELOPMENT - REGULATING PLAN OR DEVELOPMENT MASTER PLAN, SECTION 5.1.3 OFFICIAL ZONING MAP, AND SECTION 5.6.2 PUD – PLANNED UNIT DEVELOPMENT DISTRICT OF THE UNIFIED DEVELOPMENT CODE, AMENDING ORDINANCE NO. 2975 AND ORDINANCE NO. 3297 BY MODIFYING CERTAIN STANDARDS OF THE ADOPTED DISTRICT, PLANNED UNIT DEVELOPMENT (PUD), FOR ALL OF BLOCK 596 AND THE WESTERLY 40 FEET OF THE VACATED RIGHT OF WAY OF HOUSE AVENUE BETWEEN EAST 7TH AND 8TH STREETS, ORIGINAL CITY OF CHEYENNE, WYOMING (LOCATED EAST OF I-180 BETWEEN 7TH AND 8TH STREETS)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have submitted an amendment to the Block 596 Planned Unit Development ("PUD") pursuant to Section 2.2.2.b and Section 5.6.2.f of the Cheyenne Unified Development Code ("UDC").

Section 2. That on July 1, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed amendments to the PUD Final Plan that is the subject of this ordinance, and recommended approval of said amendments to the PUD Final Plan.

Section 3. That the Governing Body of the City of Cheyenne finds that the Amended Block 596 PUD Final Plan meets the criteria specified in Section 2.2.2.d of the UDC.

Section 4. That in accordance with Section 2.2.2 Planned Development - Regulating Plan Or Development Master Plan and Section 5.6.2 PUD – Planned Unit Development District of the UDC, the application is hereby approved and the zoning classification of the real property described as Block 596 and the westerly 40 feet of the vacated right of way of House Avenue between East 7th and 8th Streets, Original City of Cheyenne, Laramie County, Wyoming is hereby changed to Block 596 PUD Planned Unit Development.

Section 5. That, in accordance with UDC Section 5.6.2, the following standards shall govern this amended PUD District:

A. USES BY RIGHT:

Church and associated religious activities, kitchen and cafeteria uses, church administrative offices, private school, child care facilities, auditorium and gymnasium use, caretaker dwelling unit, and overnight guest quarters.

B. PROPERTY COVERAGE:

The coverage shall not exceed the present property coverage of the existing building and designated parking.

C. MAXIMUM BUILDING HEIGHT:

The maximum height of the existing structure will remain as it is. The entry steeple may increase to a height of 60 feet along the west face of the building.

D. SETBACK REQUIREMENTS:

Zero lot line - existing.

E. DEVELOPMENT PERFORMANCE STANDARDS

- 1) Modifications to the structure and site shall be in conformance with the Uniform Building Code and the Cheyenne Unified Development Code, as amended.
- 2) Signage - signs within 40' of the Warren Avenue right-of-way shall conform to the signage allowances of the MUB Mixed-use Business zone district. All other signs shall conform to the allowances for non-residential uses within the MR Medium Density Residential zone district, except that building signs may be more than 8' in height, as long as no portion of the building sign is higher than the roofline. The steeple may contain religious symbols. The symbols may be located at the top of the steeple as long as the overall

height does not exceed 60 feet (ref: Section 5.C of this ordinance).

F. LANDSCAPING:

Landscaping shall be provided as depicted on the PUD Site Plan Map, dated March 13, 1997.

G. PARKING:

Off street parking will be 60 stalls as depicted on the PUD Site Plan Map, dated March 13, 1997.

H. OWNERSHIP, MAINTENANCE, AND ENFORCEMENT:

Block 596, Original City, and the Westerly 40-feet of the vacated right-of-way of House Avenue between East 7th and 8th Streets, City of Cheyenne, Wyoming, shall be the responsibility of the owner to maintain and enforce compliance of this ordinance and the City of Cheyenne Nuisance Ordinances, to include maintenance and upkeep of all private access utility or drainage easements and drives, properties designated as excess right-of-way and landscaped areas shall be the responsibility of the owner.

I. DEVELOPMENT STANDARDS INCORPORATED BY REFERENCE HEREIN:

If the regulations and development standards of this PUD do not address a specific development standard or regulation pertaining to a lot or Site within the PUD, the most current edition of the Cheyenne Unified Development Code (UDC) shall govern.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

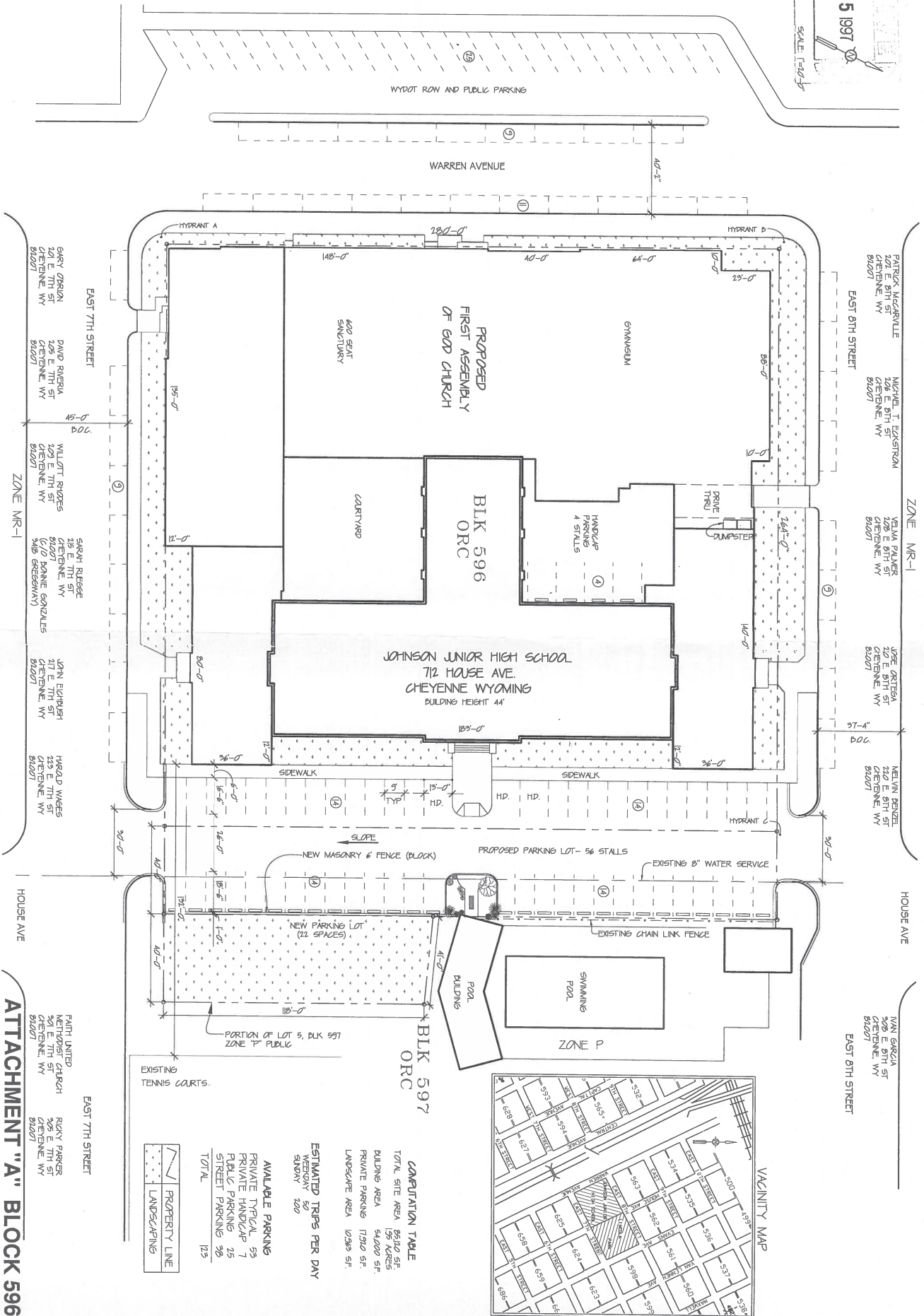
(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

MAY 15 1997

SCALE: 1"=40'



ATTACHMENT "A" BLOCK 596

C-1

3/13/97

PROPOSED FIRST ASSEMBLY OF GOD CHURCH
SITE PLAN

712 HOUSE AVENUE CHEYENNE, WYOMING

ROBERT D. CLARY P.E. P.C.
523 WEST 27th STREET
CHEYENNE, WYOMING 82001
1-307-627-3173
FAX 1-307-624-6067



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

July 2, 2019

City of Cheyenne
Governing Body

Re: Block 596 PUD Amendment

At their regular meeting on July 1, 2019 the Planning Commission recommended approval of the above described project with no conditions. Staff's recommendation originally included a condition on this action. The Community Recreation and Events Department would prefer to see a buffer of some sort between the two properties. The vision of that Department is to remove the required wall regulation from the PUD, but replace the wall with about 6 trees which would be on the park property – owned and maintained by the City.

Regards,

Seth Lloyd
Planner

STAFF REPORT - SUMMATION
Block 596
Planned Unit Development (PUD) Amendment

CASE NUMBER(s): UDC-19-00305 **SUBDIVISION CODE:** ORC

PREPARED BY: Seth Lloyd

MEETING DATES:	Planning Commission:	July 1, 2019	
	City Council:	July 8, 2019	1 st Reading
	Public Service Committee:	July 16, 2019	
	City Council:	July 22, 2019	2 nd Reading
	Public Service Committee:	August 6, 2019	
	City Council:	August 12, 2019	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff:

- Master Application; PUD Ordinance with proposed modifications in redline; List of neighbors to be notified; Draft Neighbor Notification Letter; PUD Narrative

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on July 1, 2019, the City of Cheyenne Planning Commission recommended approval of the PUD amendment, with no conditions.

STAFF RECOMMENDATION: Staff recommends approval of this PUD amendment with the condition that the buffering Section F be amended to require a vegetative screen on the east side of the property to screen the church parking lot from view from the park.

STAFF REPORT

Block 596 **Planned Unit Development (PUD) Amendment**

CASE NUMBER(s): UDC-19-00305 **SUBDIVISION CODE:** ORC
PREPARED BY: Seth Lloyd
PUBLIC HEARING: July 1, 2019 (Planning Commission)

OWNER(s): First Assembly of God Church (307) 634-4657
(Destiny Christian Church)
711 Warren Avenue
Cheyenne, WY 82007

AGENT: Rick McGraw (307) 634-4657
815 Dayshia Lane
Cheyenne, WY 82007

PROJECT: Block 596 PUD Amendment

WORK DESCRIPTIONS: A PUD Planned Unit Development amendment for Block 596, Original City, Cheyenne, Laramie County, Wyoming (located east of Warren Avenue between 7th and 8th Streets) to allow greater area for the church sign and to remove a buffer requirement between the church parking lot and the abutting City park.

LOCATION: 1. Legal Description: Block 596 & a portion of vacated House Avenue and a portion of vacated Warren Avenue right-of-way adjacent to Block 596, Cheyenne, Laramie County, Wyoming.
2. Location: located east of Warren Avenue between 7th and 8th Streets
3. Addresses: 711 Warren Avenue

SIZE: 2.0 Acres
CURRENT ZONING: Block 596 PUD Planned Unit Development (ORD #2975)
PROPOSED ZONING: Block 596 PUD Planned Unit Development (amended)
EXISTING LAND USE: Church
PROPOSED LAND USE: Church

SURROUNDING LAND USES:

SURROUNDING LAND USE(S)		ZONING	ANNEXATION STATUS
North	Single-family Residential	MR	City
South	Single-family Residential	MR	City
East	Park	P	City
West	Highway, Service, Outdoor Sales	P, MUB	City

EXECUTIVE SUMMARY:

This Planned Unit Development (PUD) amendment application proposes changing the signage and buffering requirements on a 1-block (2 acre) PUD adopted in 1997 and located in the Original City. This structure on this property is a historic school which is currently being utilized by a church. The church approached the City about placing new signage on the building and found the PUD limited signage to residential zone signage allowances. The proper process to allow greater signage area is to modify the PUD. In investigating the modification of the PUD, a requirement to provide a masonry wall was also found. The masonry wall has not been built and the PUD amendment proposes removing this requirement and all screening of the parking lot from the park to reflect the existing conditions.

The proposed PUD amendment would maintain residential-style signage standards along the sides of the building facing the residential and park areas, but allow larger, more commercial-style signage on the side of the building facing the highway. The signage allowance proposed would match the allowance of properties on the other side of the highway. Larger signage has the potential to be more distracting to motorists, but also has the potential to allow motorists to better identify their destination.

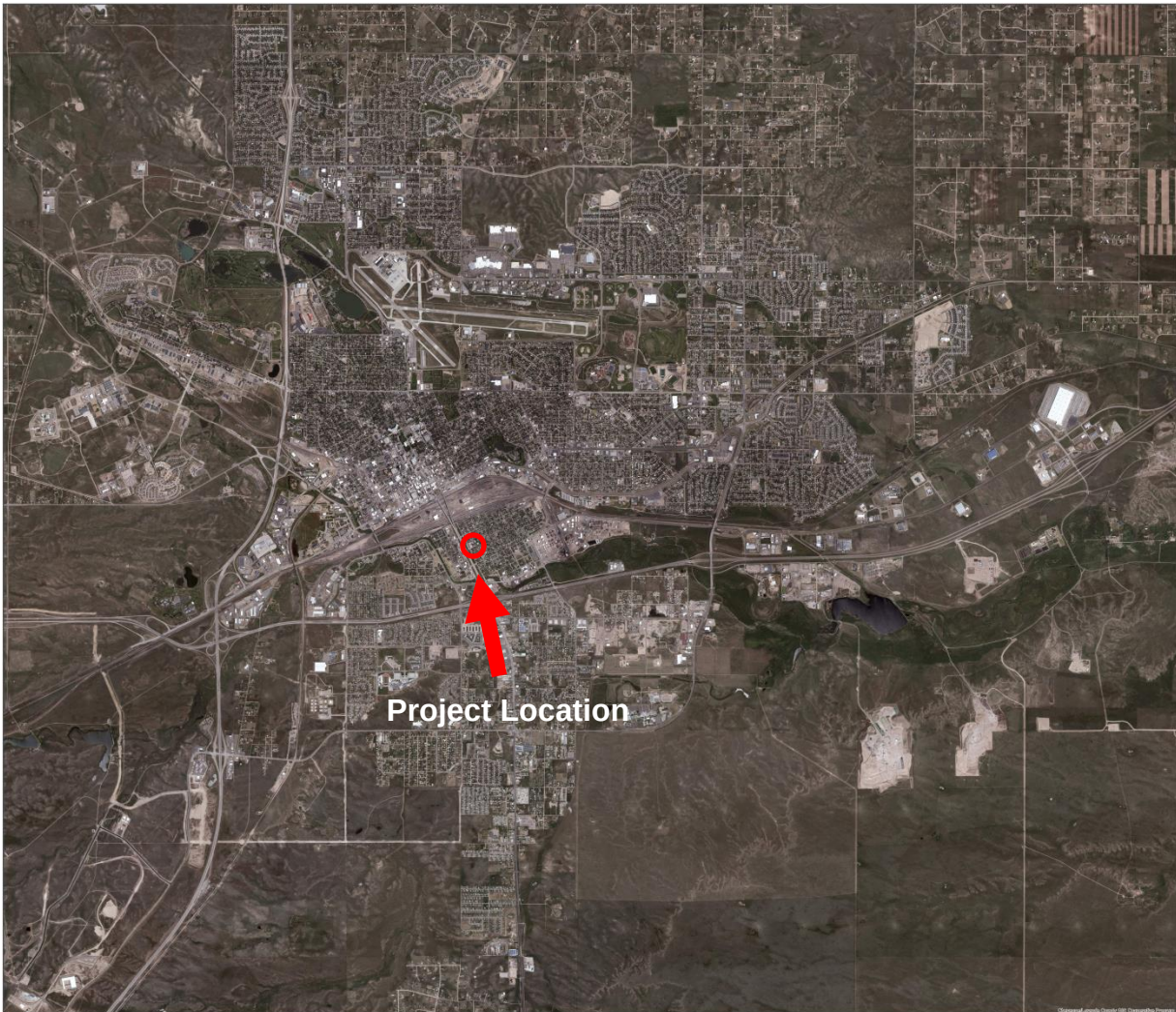
Staff recommends approval of the proposed PUD **sign** amendment with the following buffering amendment to the PUD regulations shown in red underlined text:

Section F. ~~BUFFERING AND~~ LANDSCAPING:

~~Buffering and L~~andscaping shall be provided as depicted on the PUD Site Plan Map, dated March 134, 1997. ~~A 6-foot high masonry screen fence will be erected on the east property line, fronting Lincoln Park. A minimum four-foot tall vegetative screen shall be installed between the church parking lot on the east side of the property and the adjacent City park.~~

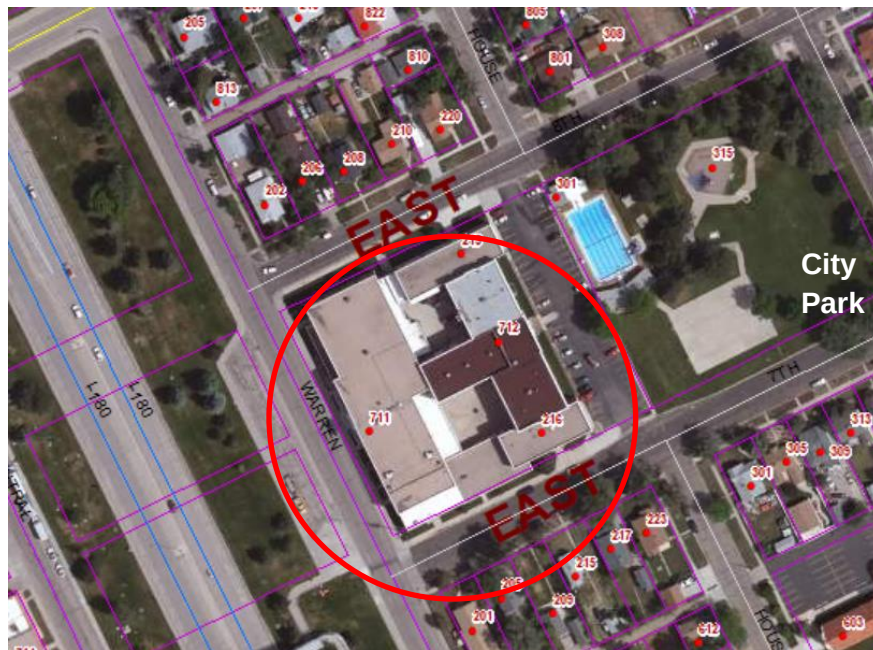
Due to meeting the review criteria of Section 2.2.2.d of the Cheyenne Unified Development Code, Staff recommends approval of this PUD amendment with the condition that the buffering Section F be amended to require a vegetative screen on the east side of the property to screen the parking lot from view from the park.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 – Project Site
Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Image # 1 – Project Site
Source: Google Street View



Image # 2 – Project Site showing proposed new sign.
Source: Application

PUD DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Planned Development request, the Staff, Planning Commission, and City Council shall use the following 15 criteria of Section 2.2.2.d:

1. PRELIMINARY PLAN REQUIREMENTS – *The application meets all threshold requirements for application of the PUD District or Form-based Code standards.*

Complies with this review criterion.

When a new PUD is established the UDC requires the PUD to meet certain thresholds; however, this application is proposing amending the text of an existing PUD, not to establish or expand the PUD.

The Unified Development Code requires every PUD Ordinance to include 12 specific elements (outlined in UDC 5.6.2.f). These elements are:

1. *Uses by right and location*
2. *Uses permitted by Board approval and location*
3. *Lot and building standards (including frontage, size, coverage, building height, and setbacks/build-to lines)*
4. *Building design standards*
5. *Landscape, buffering, and screening requirements*
6. *Common open space or facilities and design types*
7. *Signage requirements and regulations*
8. *Parking requirements*
9. *Development performance standards*
10. *Proposed ownership of common facilities*
11. *A statement on how proposed deviations from otherwise required standards support the proposed plan, and result in design excellence and outstanding public amenity that is otherwise not allowable under general zoning standards*
12. *Any other requirements and restrictions*

The existing PUD addresses the above required elements and only proposes changing signage and buffering requirements. While a screening element is removed, the PUD maintains landscaping requirements.

2. CLARITY OF STANDARDS – *The application presents clear and specific criteria on how the property and subsequent development will be reviewed, regulated, and modified consistent with these regulations.*

Complies with this review criterion.

The proposed substantive amendments to the PUD are largely enforceable, and other minor text edits to the PUD and clarifies how the PUD is enforced.

3. COMPREHENSIVE PLAN – *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Complies with this review criterion.

PlanCheyenne designates this block with a future land use designation of public quasi-public. Churches are an appropriate use in areas with this designation. Other uses with this designation include many properties zoned P Public, and the signage regulations proposed are more restrictive than the regulations for P-zoned properties.

PlanCheyenne specifically mentions that signage should not proliferate at gateways to the community. This property is along a major entrance into downtown, although not officially designated a gateway by PlanCheyenne. The requested signage allowance is for that of a mixed-use zone, which generally is more limiting than industrial, public, or standard commercial zoning signage allowances.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS
Cooperative Program

4. DESIGN PRINCIPLES – *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

Complies with this review criterion provided any sign on the east side of the property is screened from view from the adjacent park [see Condition No. 1].

The property is adjacent to residential development to the north and south. To the east, the property is adjacent to a park and beyond the park is more residential development. To the west, the property is adjacent to a major highway, and across the highway is commercial development. The proposed changes to the signage regulations maintains smaller allowances adjacent to the residential and park areas, while allowing more commercial-style signage along the western edge of the property which fronts the major highway and commercial development.

The proposal to remove the masonry wall requirement reflects the existing conditions at the site but removes a potential buffer between the parking lot and the park. The Community Recreation and Events department recommends that a buffer of some sort still be required, preferably utilizing vegetation; this would occur at the sign building permit stage.

5.SUBDIVISION STANDARDS – *The application meets the purposes, intent, and all applicable standards in Article 4.*

Complies with this review criterion.

As a previously-developed property in an area originally platted as part of the Original City of Cheyenne, many of the subdivision standards found in Article 4 of the UDC are not applicable to this development. Open spaces, streets, blocks, and utilities are already in place and developed. The original PUD does require that the parcel continue to continue the existing on-site open spaces, and this proposed amendment does not propose changing that requirement.

6. DEVELOPMENT PHASING – *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

Review criterion **not applicable** – no phasing is proposed.

7. IMPACT MITIGATION – *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

Review criterion **not applicable** – no impact studies were prepared (or were requested to be prepared with this application).

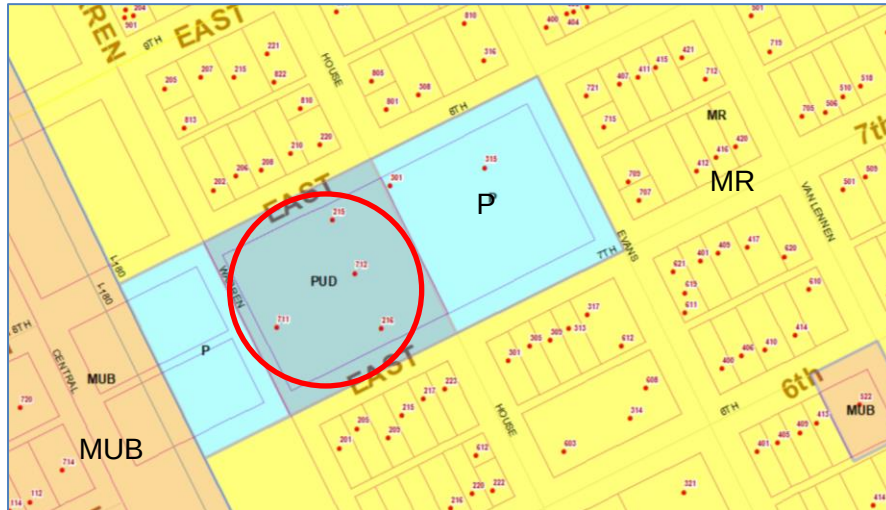
8. COMMUNITY COMPATIBILITY – *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

Complies with this review criterion.

The PUD amendment proposes changing the signage along one frontage of the PUD and removing a buffering requirement (which required a buffer that was never installed). The current PUD's signage regulations limits the property to residential-zoning-style signs, but the property is adjacent on the west to a major transportation corridor. The zoning across the highway from this property is MUB

Mixed-use Business emphasis. By giving the highway frontage of this the same signage allowance as the MUB zone, the property would have matching regulations as the properties along the western side of the highway corridor.

Buffering the parking lot from the adjacent park is still desired by the City's Community Recreation and Events Department. However, since the adoption of the PUD, the required wall was never installed, and a sidewalk was installed instead. The Community Recreation and Events Department has indicated that a screen of some sort is still desired, but there may be alternative options to the masonry wall required by the PUD. Such a screen may be landscaping or trees [see recommended Condition No. 1]



Map #4 – Current Zoning
Source: Cheyenne/Laramie County GIS
Cooperative Program

9. COMPARED SUITABILITY – *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared with the suitability of the subject property for development according to the standards and uses of proposed zoning district.*

Complies with this review criterion.

The existing PUD is fairly limiting to future development options. However, the proposed modifications to the existing PUD do not increase or decrease allowed uses.

10. INTENT AND APPLICABILITY- *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

Complies with this review criterion.

The proposed amendment does not change the intent or applicability of the PUD, and the design standards proposed to be modified fit within the original PUD's scope.

11. FUTURE DEVELOPMENT – *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Complies with this review criterion.

The existing PUD is fairly limiting to future development options. However, the proposed modifications to the existing PUD do not increase or decrease allowed uses. This amendment does not adversely affect the ability of this PUD to develop or redevelop.

12. PUBLIC BENEFITS- *Whether the planning and urban design concepts, and any proposed deviation from or alternative to otherwise applicable development standards, result in clear public benefits, as opposed to benefits to existing or future land owners in the development.*

Would Comply with this review criterion with Condition No. 1

The proposed PUD amendment would remove a requirement to screen the parking lot adjacent to the City park which states: "~~**BUFFERING AND LANDSCAPING:**~~

~~Buffering and landscaping shall be provided as depicted on the PUD Site Plan Map, dated March 134, 1997. A 6-foot high masonry screen fence will be erected on the east property line, fronting Lincoln Park."~~



***Image #3: Image of church parking lot adjacent to Lincoln Park.
Source: Google Earth***

The proposed amendment would change only the signage and buffering regulations. Larger signage benefits the current landowner, but also allows the public to more easily identify the facility.

The buffer requirement was part of the original PUD but was never installed. The City's Community Recreation and Events Department would like the Applicant to provide a vegetative buffer to screen views of the parking lot from the park [see Condition No. 1].

13. REVIEW – *The review and recommendations of other reviewing bodies.*

Largely **Complies** with this review criterion.

Reviewing agencies generally did not have concerns with the proposed modifications to the PUD. The Community Recreation and Events Department commented that while the removal of the buffering wall was acceptable, a buffer of some sort is still desired.

14. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

Complies with this review criterion.

A larger sign on the building has a higher potential to distract drivers, but on the other hand, a larger sign on the building has a higher potential of allowing drivers to successfully identify this destination.

Screening church parking areas from Lincoln Park would help separate the uses, would screen headlight glare from penetrating into the park, and, if a vegetative screen, would provide an attractive amenity for both the church patrons and park users [see Condition No. 1].

15. COMPATIBLE CHARACTER – *The application is compatible with the character of the surrounding area in terms of building scale, building form, landscape, and site design.*

Would Comply with Condition No. 1.

The PUD amendment proposes changing the signage along one frontage of the PUD and removing a buffering requirement that was never installed. The current PUD encourages the reuse of an existing historic structure and largely requires the site and building to remain 'as is'. The proposed amendment does not change the requirements relative to building scale, for, site design, or most landscaping. The removal of any required buffer reflects the existing conditions, but a vegetative buffer may provide a higher degree of compatibility with the neighboring park. The Community Recreation and Events Department has indicated that a screen would be beneficial, but there may be alternative options to the masonry wall required by the PUD such as a vegetative screen of shrubs.

Attachment: Applicant Narrative; Proposed PUD Regulations C: Owner, Agent/Applicant, File

A horizontal number line is shown with tick marks at 0, 500, and 1,000. The word "Feet" is written below the line. A solid black line starts at 0 and extends to the right, ending at 500. At 500, there is a jump discontinuity, indicated by an open circle. From 500, a solid black line continues to the right, ending at 1,000.

An aerial photograph of a residential neighborhood with various zoning districts labeled. The 'SUBJECT PROPERTY' is highlighted with a red outline and labeled 'PUD'. Other labeled areas include 'NR-2' (top left), 'MR' (top center, top right, and bottom right), 'P' (middle left and middle right), and 'MUB' (bottom left). The map shows a grid of streets and individual lots.



A map of the City of San Diego showing the location of the subject property. The map is color-coded by land use: Urban Residential (yellow), Public and Quasi-Public (blue), Open Space and Parks (green), Mixed-use Business (red with diagonal stripes), and Urban Residential (yellow). The subject property is highlighted with a red outline and labeled "SUBJECT PROPERTY". It is located in the center of the map, adjacent to the Public and Quasi-Public area and the Open Space and Parks area.